

Court No. - 21

Case :- WRIT - C No. - 40495 of 2022

Petitioner :- Hazi Rasid Ali

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Girish Kumar Mishra

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Ajit Singh,J.

Sri Pranjal Mehrota, learned counsel for the Electricity Department shall produce the provisional and the final assessment order, if any on the next date of listing.

List this case as fresh on 24.1.2023.

Order Date :- 13.1.2023

Faridul

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

As prayed by counsel for the petitioner, list as fresh on 01.02.2023.

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)

Order Date :- 24.1.2023

Ruhi

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

The petitioner has challenged the recovery certificate dated 08.09.2022 issued by respondent No. 3 in a case of theft of electricity.

Sri Pranjal Mehrotra, learned counsel for the respondent Electricity Department states that the impugned recovery has been withdrawn and that fresh order will be passed after providing opportunity of hearing to the petitioner.

Accordingly, the petition is disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

(Vikram D. Chauhan, J.)

(Manoj Kumar Gupta, J.)

Order Date :- 1.2.2023

Ruhi